

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
ROBIN GREENBAUM,

Plaintiff,

-against-

SUMMONS

CITY OF NEW YORK, EPSTEIN GRULLON, and JOHN
or JANE DOE 1-10, individually and in their official
capacities as New York City police officers,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 27, 2019



SIM & DEPAOLA, LLP

BY: Samuel DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

Police Officer Epstein Grullon
Shield #18199, Tax ID 957646
PSA 8
2794 Randall Ave
Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROBIN GREENBAUM,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, EPSTEIN GRULLON, and JOHN or
JANE DOE 1-10, individually and in their official capacities
as New York City police officers,

Defendants.
-----X

Plaintiff, ROBIN GREENBAUM, by her attorneys, SIM & DEPAOLA, LLP, for her
complaint against the above Defendants, alleges as follows:

1. The claims arise from a January 13, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Ms. Greenbaum. Ms. Greenbaum was subsequently prosecuted and charged. As a result, Ms. Greenbaum was deprived of her liberty and suffered emotional and physical injuries. Ms. Greenbaum was wrongfully incarcerated over the course of two (2) days or approximately twenty-one (21) hours, until all charges were dismissed and sealed on, or about, April 24, 2018.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff ROBIN GREENBAUM (“Ms. Greenbaum”) resides in Jersey City, County of Hudson, State of New Jersey.
4. The Defendant, City of New York (or “City”), is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.
7. Defendant, Police Officer Epstein Grullon (“Grullon”), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Grullon was, at all times relevant herein, a Police Officer under Shield #18199, with Tax Reg. No. 957646, and assigned to NYPD command PSA 8, located at 2794 Randall Avenue, Bronx, New York 10465. Defendant Grullon is being sued in his individual and official capacities.
8. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of

Defendants John or Jane Doe 1 through 10, but is within knowledge of the defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are sued in their individual and official capacities.
10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
11. Within 90 days of accrual dates for these claims, Plaintiff timely filed written notices of claim with the New York City Office of the Comptroller.
12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On January 13, 2018 at approximately 8:45 pm, Plaintiff was present inside of Salanter Akiba Riverdale Academy, located at 503 West 259th Street, Bronx, New York.
16. Plaintiff was present at the above location as an invited guest of the school.

17. Plaintiff was invited to attend the annual dinner at Salanter Akiba Riverdale Academy held for alumni of the school.
18. Plaintiff attended the school for seven (7) years.
19. At said event, Gail Bendheim informed Defendants that Plaintiff had “glared” at her and that Plaintiff remained at the above location
20. Gail Bendheim further informed Defendants that she was in possession of an order of protection issued against Plaintiff.
21. Plaintiff was an invited guest to the location in question and plaintiff did not make any contact whatsoever with the complainant.
22. Plaintiff did not approach the complainant or directly engage the complainant in any way.
23. Said order of protection expired two years after it was issued and was not valid at the time of plaintiff’s arrest.
24. Plaintiff did not violate said order of protection, as the location where plaintiff was alleged to have violated the order of protection was not the home, school, business of or place of employment of the alleged victim. The function was a private event.
25. Plaintiff did not disobey or violate any court order, as falsely claimed by Defendants, including Defendant Grullon.
26. Police Officer Epstein Grullon of P.S.A 8 arrived at said location and falsely arrested plaintiff for violation of an order of protection.
27. At no time did Plaintiff ever violate said order of protection, as her presence and conduct at said function was permissible and not in violation of any court order.
28. Plaintiff had not committed any crime or violation of the law.

29. Defendant Grullon, instead of immediately realizing that Plaintiff had not violated the order of protection, proceeded to unlawfully arrest Plaintiff.
30. Upon information and belief, Defendant Grullon intentionally and unlawfully arrested Plaintiff for the purposes of obtaining credit for an arrest and for the monetary reward due to overtime hours worked, all with the knowledge that Plaintiff had not violated the law.
31. Defendant Grullon violated plaintiff's civil rights to be free from illegal search and seizure because he arrested plaintiff without any probable cause to believe that plaintiff had committed a crime or violation of the law.
32. Defendant Grullon falsely arrested Plaintiff, because even if the actions of Plaintiff alleged by Gail Bendheim were proven true, said actions did not constitute the crime of Criminal Contempt in the Second Degree, or any other crime or violation of the law.
33. Accordingly, the arrest of Plaintiff was unlawful and without probable cause, as a matter of law.
34. Officer Grullon and other officers from the NYPD committed assault and batteries to plaintiff by touching plaintiff and putting plaintiff in handcuffs without a legal justification to do so.
35. Based on Officer Grullon's false statements, namely that plaintiff committed the crime of Criminal Contempt in the Second Degree, plaintiff was maliciously prosecuted in violation of her civil rights.
36. On April 24, 2018, the Hon. Patsy Gouldborne dismissed all charges against plaintiff for being facially insufficient, as a matter of law.

37. Defendant City and its employee NYPD officers have engaged in a pattern and practice of stopping and searching individuals without reasonable suspicion or probable cause to do so.
38. Defendant City and its employee NYPD officers have engaged in a pattern and practice of arresting individuals under false pretenses and without probable cause to do.
39. Defendant City and its employee NYPD officers have engaged in a pattern and practice of falsely arresting individuals due to their ignorance of the law
40. Defendant City has failed to adequately train and supervise its employee officers regarding proper police arrest procedures.
41. Plaintiff's instant arrest clearly shows that Defendant City has failed to properly train its employee officers due to the obvious absence of any probable cause to arrest Plaintiff.
42. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
43. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
44. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and

supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

45. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
46. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Plaintiff.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

47. The above paragraphs are here incorporated by reference as though fully set forth.
48. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
49. Plaintiff was conscious of her confinement.
50. Plaintiff did not consent to her confinement.
51. Plaintiff's arrest and false imprisonment was not otherwise privileged.
52. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
54. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

55. The above paragraphs are here incorporated by reference as though fully set forth.
56. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
57. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
58. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
60. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

61. The above paragraphs are here incorporated by reference as though fully set forth.

62. Defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
63. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
69. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
70. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
71. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

72. The above paragraphs are here incorporated by reference as though fully set forth.
73. Defendants initiated the prosecution against Plaintiff.
74. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
75. Defendants acted with malice.
76. The prosecution was terminated in Plaintiff's favor, when she was acquitted of all criminal charges after trial.
77. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
78. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
79. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

80. The above paragraphs are here incorporated by reference as though fully set forth.
81. Defendants initiated the prosecution against Plaintiff.
82. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
83. Defendants acted with malice.

84. The prosecution was terminated in Plaintiff's favor when she was acquitted of all criminal charges after trial.
85. Defendants violated Plaintiff's Fourth Amendment rights by causing Plaintiff to remain incarcerated against her will after her arraignment.
86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
87. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth.
89. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
92. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

93. The above paragraphs are here incorporated by reference as though fully set forth.
94. Those Defendants that were present but did not actively participate in the
aforementioned unlawful conduct observed such conduct, had an opportunity to
prevent such conduct, had a duty to intervene and prevent such conduct and failed to
intervene.
95. Accordingly, the Defendants who failed to intervene violated the Fourth and
Fourteenth Amendments.
96. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the
damages hereinbefore alleged.
97. By reason of the above, the amount of damages sought on this cause of action exceeds
the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth.
99. Defendants arrested, detained and caused a criminal prosecution to be initiated
against Plaintiff to compel the compliance or forbearance of some act.
100. Defendants had no excuse or justification to forcibly detain or initiate a
prosecution against Plaintiff, especially with the absence of any cognizable probable
cause.
101. Defendants intended to inflict substantial harm upon Plaintiff.

102. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
105. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
106. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

107. The above paragraphs are here incorporated by reference as though fully set forth.
108. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
109. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
110. Defendants intended to inflict substantial harm upon Plaintiff.
111. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

112. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

115. The above paragraphs are here incorporated by reference as though fully set forth.
116. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
117. Defendant City breached that duty of care.
118. Defendant City placed defendants in a position where they could inflict foreseeable harm.
119. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
120. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

122. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

123. The above paragraphs are here incorporated by reference as though fully set forth.

124. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

125. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policymaker must have been aware of.

126. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

127. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

128. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

130. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
March 28, 2019

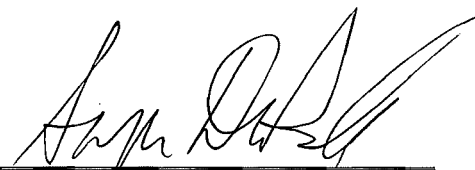


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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 27, 2019


SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
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ROBIN GREENBAUM,

Plaintiff,

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in their official capacities as New York City police officers,

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SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for